

25NWCV02058 25NWCV02058

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Case Number: 25NWCV02058 Hearing Date: September 18, 2026 Dept: D

LILLIAN AYALA v. CERRITOS COMMUNITY COLLEGE, ET AL.

CASE NO.: 25NWCV02058

HEARING: 09/18/2026 @ 9:30 a.m.

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TENTATIVE ORDER

Defendant Cerritos Community College's unopposed motion to deem requests for admission admitted against Plaintiff is GRANTED.

Defendant Cerritos Community College's request for sanctions is GRANTED in the amount of \$690, due 30 days from the date of this order.

Moving party to give notice.

Defendant Cerritos Community College (Defendant) moves for an order deeming requests for admission admitted against Plaintiff Lillian Ayala (Plaintiff); monetary sanctions in the amount of \$1,035.00.

Legal Standard

Requests for Admission

"Any party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties." (Code Civ. Proc., § 2033.010.) "Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared" (Code Civ. Proc., § 2033.250(a).)

If a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (Code Civ. Proc., § 2033.280(a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (Code Civ. Proc., § 2033.280(b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (Code Civ. Proc., § 2033.280(c).)

Sanctions

If the motion to compel is granted and the moving party properly requests monetary sanctions, the court “shall” impose sanctions against the party to whom the discovery was directed, unless it finds that the sanctioned party acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., §§ 2030.290, subd. (c) [interrogatories]; 2031.300, subd. (c) [demands for inspection].)

In contrast, with respect to requests for admissions, monetary sanctions are mandatory against the party, the attorney, or both whose failure to serve a timely response necessitated the motion to deem the matters admitted, and the statute does not provide an exception for substantial justification. (Code Civ. Proc., § 2033.280, subd. (c); see also Cal. Rules of Court, rule 3.1348, subd. (a).)

Analysis

On May 20, 2026, Defendant served initial discovery on Plaintiff, including Request for Admissions, Set Two. (McEwan Decl., ¶ 3; Exh. “A”.) Plaintiff failed to timely serve responses to Defendant’s Request for Admissions, Set Two, within 30 days as required by Code of Civil Procedure section 2033.250(a). Counsel for Defendant sent Plaintiff’s counsel a meet and confer letter regarding the outstanding discovery responses on June 30, 2026. (McEwan Decl., ¶ 4; Exh. “B”.) Counsel for Defendant did not receive any response from Plaintiff’s counsel and, to date, no responses have been provided. (McEwan Decl., ¶ 5.)

Plaintiff’s responses were due on or before June 19, 2026. (Code Civ. Proc., §§ 2030.260, subd. (a), 2031.260, subd. (a), & 2033.250, subd. (a).) Plaintiff failed to timely serve verified responses, thereby waiving any objections to the discovery requests. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a), & 2033.280, subd. (a).)

Plaintiff has not filed an opposition or otherwise disputed Defendant’s showing that no timely verified responses were served.

Accordingly, Defendant’s motion is GRANTED.

Sanctions

Defendant requests monetary sanctions against Plaintiff and his counsel, jointly and severally, in the amount of \$1,035.00, based on 3.0 hours of attorney time at an hourly rate of \$345.00. Counsel represents that this includes 2.0 hours preparing the motion and an additional 1.0 hours to prepare the reply. (McEwan Decl., ¶ 8.)

Here, as discussed above, the Court grants Defendant’s motion to compel. Accordingly, monetary sanctions are warranted. In addition, with respect to the requests for admissions, monetary sanctions are mandatory where a party’s failure to serve timely responses necessitates a motion to deem the matters admitted, absent a showing of substantial justification or other circumstances making the imposition of sanctions unjust. (Code Civ. Proc., § 2033.280, subd. (c).)

Given the straightforward nature of the motion to deem requests for admissions admitted, the Court finds that two hours is a reasonable amount of attorney time, as no substantive reply was necessary. Accordingly, Defendant's request for monetary sanctions is GRANTED in the reduced amount of \$690.00.

Conclusion

Based on the foregoing, Defendant's unopposed motion to deem requests for admission admitted against Plaintiff is GRANTED.

Defendant's request for sanctions is GRANTED in the amount of \$690.00, due 30 days from the date of this order.